CITY OF FAIRFIELD

ORDINANCE NO. 2026-05

ADDING A NEW ARTICLE IX (CITY CLERK) TO CHAPTER 2 (ADMINISTRATION) OF THE FAIRFIELD MUNICIPAL CODE TO CHANGE THE OFFICE OF CITY CLERK TO AN APPOINTIVE OFFICE

WHEREAS, pursuant to Government Code Section 36502, the Office of the City Clerk of the City of Fairfield is currently an elective office; and

WHEREAS, Government Code Section 36508 and Elections Code Section 9222 authorize the City Council to submit to the electors the question of whether the elective city clerk shall be an appointive office and, if a majority of voters voting on the measure approve it, the office shall become appointive; and

WHEREAS, changing the Office of City Clerk to an appointive office would allow the City to appoint an individual, including an appointment through employment, that has the professional education, training, experience and knowledge in addition to the technical skills necessary to understand and administer the wide range of laws and legal responsibilities of the city clerk; and

WHEREAS, this measure would provide the City Council with the authority to delegate the appointment authority for the city clerk position to the city manager to ensure the selection of a professional with the skills and expertise needed for the position of city clerk; and

WHEREAS, all other legal prerequisites to the adoption of this ordinance have occurred.

NOW, THEREFORE, THE PEOPLE OF THE CITY OF FAIRFIELD DO ORDAIN AS FOLLOWS:

SECTION 1. Chapter 2 of the Fairfield Municipal Code is hereby amended to add a new Article IX to read as follows:

"ARTICLE IX — CITY CLERK

2.43 — Appointment.

Pursuant to Government Code Sections 36501 and 36508 through 36510, the city clerk shall be appointed and serve at the pleasure of the City Council. Notwithstanding the foregoing, pursuant to Government Code Section 36510, the City Council may by ordinance, vest in the city manager its authority to appoint the city clerk. The appointed person shall not be required to be a City resident or elector.

2.44 — Compensation.

The city clerk shall receive such compensation as shall be fixed by resolution or ordinance of the City Council.

2.45 — Powers and duties.

A. The city clerk shall have the powers, duties and responsibilities granted to and imposed upon the office of the city clerk pursuant to the following:

1. The provisions of Chapter 2 of Part 3 of Division 3 of Title 4 of the Government Code (commencing with Section 40801), with the exception of the financial and accounting duties set forth in Government Code Sections 40802 through 40805;

2. Other state laws, with the exception of those financial powers and duties imposed upon the city clerk by Title 4, Division 3, Part 2, Chapter 4 of the Government Code (commencing with Section 37201); and

3. The provisions of the Fairfield Municipal Code.

B. The city clerk shall also perform such other duties as may be required of the city clerk by the city manager or the City Council."

SECTION 2. If a majority of the voters voting on this measure at the November 3, 2026, General Municipal Election approve this Ordinance, it shall take effect 10 days after the City Council declares and certifies the results of the election, as required by applicable law. The position of City Clerk shall be filled by appointment thereafter upon the earlier of either a vacancy in the office or at the expiration of the current term of office of the incumbent in accordance with Government Code Section 36510.

SECTION 3. Notwithstanding Elections Code Section 9217, the City Council may subsequently amend this Ordinance without voter approval, except that voter approval shall be required to re-instate the position of an elected city clerk.

SECTION 4. To the extent the terms and provisions of this Ordinance may be inconsistent or in conflict with the terms or provisions of any prior City ordinance, motion, resolution, rule or regulation governing the same subject, the terms of this Ordinance shall prevail.

SECTION 5. In interpreting this Ordinance or resolving any ambiguity, this Ordinance shall be interpreted in a manner that effectively accomplishes its stated purpose.

SECTION 6. If any section, subsection, subdivision, sentence, clause, phrase, or portion of this Ordinance for any reason is held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance. The people of the City of Fairfield hereby declare that they would have adopted this Ordinance, and each section, subsection, subdivision, sentence, clause, phrase, or portion thereof, without regard to whether any one or more sections, subsections, subdivisions, sentences, clauses, phrases, or portions thereof be declared invalid or unconstitutional.

SECTION 7. The city clerk is hereby directed to publish this ordinance at least once, within 15 days after the election results are certified, in a newspaper of general circulation published and circulated in the City of Fairfield.

SECTION 8. The mayor is hereby directed to attest to the adoption of this Ordinance by signing where indicated below upon certification by the city clerk that a majority of those electors voting on this Ordinance have voted in the affirmative.

PASSED, APPROVED AND ADOPTED BY THE VOTERS OF THE CITY OF FAIRFIELD, STATE OF CALIFORNIA, AT THE GENERAL MUNICIPAL ELECTION HELD ON NOVEMBER 3, 2026.

AYES: MEMBERS: VACCARO/BERTANI/CARR/PANDURO/SANDHU/TONNESEN/WILLIAMS

NOES: MEMBERS: _____

ABSENT: MEMBERS: _____

ABSTAIN: MEMBERS: _____

_____
MAYOR

ATTEST:

_____
CITY CLERK